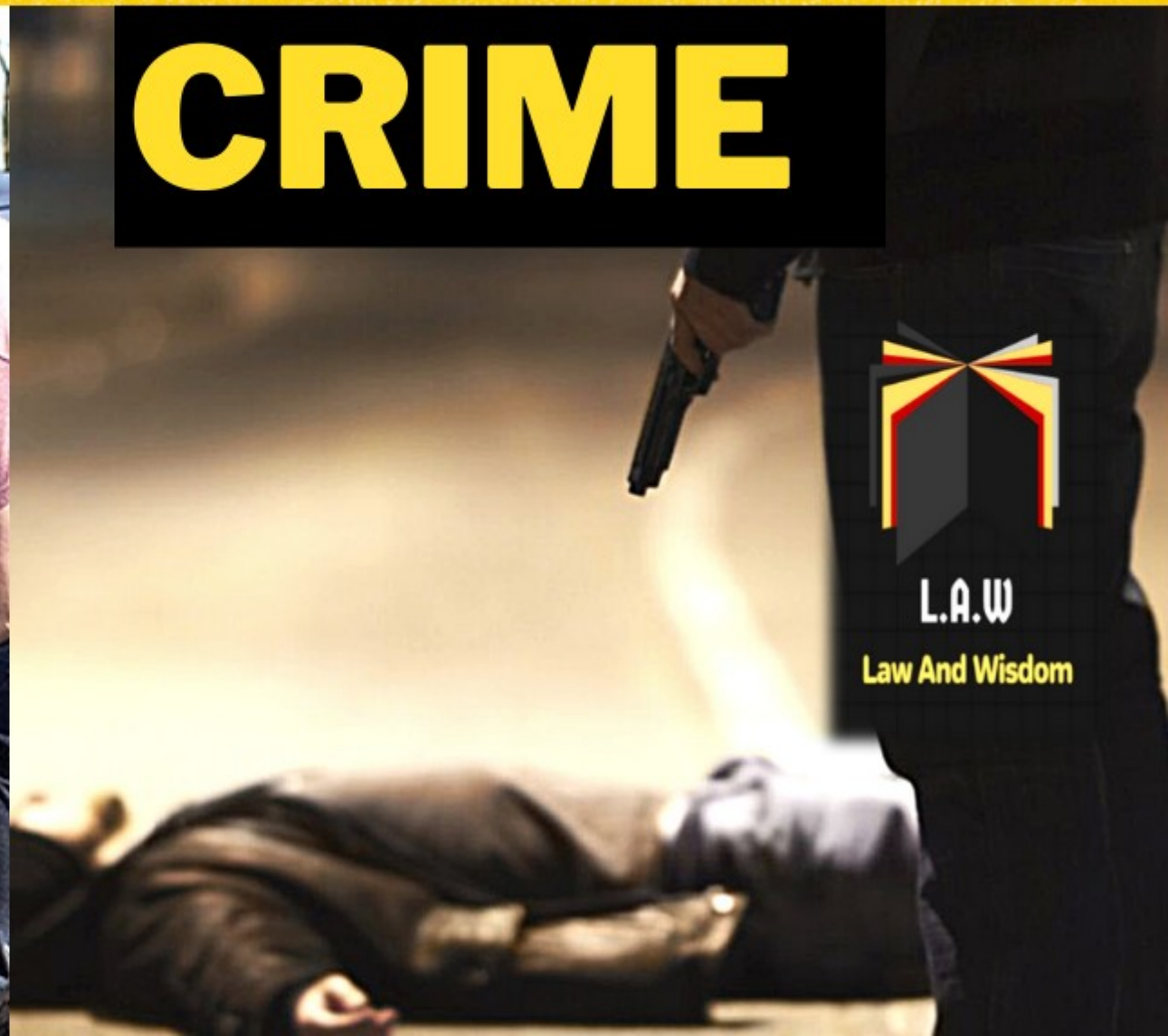
Difference Between

TORT



CRIME



Criminal Law

Introduction

- Legal terms often generally become a source of confusion. Two of the terms are Crime and Tort. Sometimes, people use them interchangeably but that is not the reality. Both terms are completely different from each other.
- Each of them has separate features and consequences. It becomes very essential to understand the real existence of these legal terms in order to understand the legal system properly.
- Here, we will look at the meaning of crime and tort, and the difference between tort and crime.

Law and Wisdom

What is a crime?

- A crime is a wrong doing that affects society. It has been identified by the state legal system and is prosecuted according to the laws of the state and the procedure followed in a criminal court of law.
- The injured party is classified as the society and the laws broken have been set up by the state or federal government to protect the members of society.
- The proceedings that are used to bring about justice take place in a criminal court of law.
- The punishment will fit the crime under criminal law and the defendant will serve the sentence given to him through the criminal court of law.

Law and Wisdom

Crimes are illegal acts for the following reasons

- Crimes go against existing laws laid down in society.
- Crimes affect the standard of living for law-abiding citizens who wish to live peacefully in their social environment.
- A crime is a **deliberate act** going against the law and contravening human rights.

Law and Wisdom

What is a tort?

- Unlike a crime, tort is doing something wrong hampering individual parties. In legal terms, a tort happens when negligence directly damages a person or his/her property. There are different types of torts, but all of them result in injury to a private person or property.
- Negligence is the most common reason for tort. When a person unintentionally harms someone then the injured party can sue the defendant for his act.

Law and Wisdom

A tort is unlawful because

- A tort causes bodily harm or psychological injury to an individual and impairs a person's lifestyle.
- A tort goes against the civil rights of an individual in society.
- Torts are covered by law and the offence can be prosecuted, but the outcome will differ based on the legal guidelines serving the law and civil rights.

Law and Wisdom

Difference Between a Tort and Crime

Definition

- A tort is a wrongful act that is done towards someone which causes damage to someone which gives him the right to seek a legal remedy from the court of law. In tortious cases, the court can provide someone with unliquidated damages.
- A crime is an offence punishable by the State as it is not a harmful act done to one individual but the community/state/society in general.

Law and Wisdom

Effect on society

- Torts and crimes affect society in different ways, but the impact is negative. A tort upsets the well being of an individual and they may seek legal action and compensation.
- A crime affects society and the criminal law will ensure the perpetrators are punished for their crimes. Sometimes, torts and crimes can be inter-twined in the same criminal activity. An individual, on the scene of the crime, could be injured because of the criminal activity.

Law and Wisdom

Intention

- The intent of a tort can be unintentional, it is accidental and caused by negligence. It is still damaging to the individual.
- A crime is an intentional wrong doing that affects society. Individuals may be caught up in the crime and suffer during the criminal activity, but generally the crime and criminals break the law and intend to gain from the wrong doing.

Law and Wisdom

Sources

- There are no statutes or regulation from where Tort law can be sourced. Instead, it is precedents that regulate Tort law in India and Pakistan
- The precedents in criminal law are extremely important but there are proper statutes present for Criminal law like the Indian Penal Code and Code of Criminal Procedure.

Law and Wisdom

Compensation

- Compensation for torts is given on the basis of the damages to the aggrieved party.
- Compensation for crimes is already mentioned in the book of law. Whenever the court has to decide the amount of compensation, they simply refer to the law book. In certain cases, judges use their personal judgments too.

Law and Wisdom

Burden of Proof

- In tort law, the aggrieved party has to just prove that the other party had owed them a duty of care and they have clearly breached that.
- In a criminal case, the prosecution has to prove not only the mens rea and actus reus but also satisfy the court that such a crime was committed beyond a reasonable doubt.

Law and Wisdom

Can Torts be both Civil and Criminal in Nature?

- Yes, Torts can be both civil and criminal in nature. It is not always the case where tortious wrongs are civil in nature. What distinguishes one from the other is if the wrongs were committed with **a criminal intention**. If there was a guilty mind behind the act then it qualifies for a crime.
- Hence, we can say that both these laws overlap each other. Some examples of these torts are trespass- when someone trespasses with the intention and knowledge of the act so committed is going to amount to trespass, it takes a criminal nature, assault, battery etc.

Law and Wisdom

The End

Law and Wisdom